NATIONAL COUNCIL FOR
LAW REPORTING
LIBRARY

SPECIAL ISSUE

Kenya Gazette Supplement No. 205 (Acts No. 26)

REPUBLIC OF KENYA

KENYA GAZETTE SUPPLEMENT

ACTS, 2025

NAIROBI, 27th November, 2025

CONTENT

Act—

PAGE

The Capital Markets (Amendment) Act, 2025 585

PRINTED AND PUBLISHED BY THE GOVERNMENT PRINTER, NAIROBI

THE CAPITAL MARKETS (AMENDMENT) ACT, 2025

No. 26 of 2025

Date of Assent: 21st November, 2025

Date of Commencement: 11th December, 2025

AN ACT of Parliament to amend the Capital Markets Act

ENACTED by the Parliament of Kenya, as follows—

Short title.

1. This Act may be cited as the Capital Markets (Amendment) Act, 2025.

Amendment of section 29 of Cap. 485A.

2. Section 29 of the Capital Markets Act is amended by—

(a) inserting the following new subsection immediately after subsection (3)—

(3A) The Cabinet Secretary may, in consultation with the Authority, make Regulations prescribing the shareholding limits for different categories of business that require to be licensed or approved under the Act;

(b) deleting subsection (4);

(c) deleting subsection (5);

(d) deleting subsection (6); and

(e) deleting subsection (7).

Insertion of new section into Cap. 485A.

3. The Capital Markets Act is amended by inserting the following new section immediately after section 39—

Transitional provisions.

40. (1) Any licence granted, and the shareholding and governance structures approved under such licence shall be valid until the coming into operation of regulations made under section 29 (3A).

(2) Without prejudice to the generality of subsection (1), the Authority shall issue licences in accordance with the limits set in the regulation under section 29 (3A).